

HOUSE BILL 2114

By Crawford

AN ACT to amend Tennessee Code Annotated, Title 1,
Chapter 3 and Title 8, Chapter 44, relative to
public notices.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 1-3-120, is amended by adding the
following as a new subsection:

(g)

(1) Beginning July 1, 2027, the requirement to publish a notice in a
newspaper of general circulation may be satisfied by a local government
publishing the required notice electronically online, either by the local
government or a third party. Electronic public notice systems must provide easy,
equitable, and barrier-free access for all users across commonly used platforms.

(2) In order to utilize electronic publication for a required notice, a local
government shall:

(A) Pass an ordinance or resolution detailing the date electronic
publication of notices will begin, how the public can access the notices,
and what types of notices will be published electronically; and

(B) Adopt a policy governing the posting of notices electronically.

(3) The electronic online publications made under this subsection (g)
must be accessible to the public free of charge.

(4) An electronic public notice system policy adopted under subdivision
(g)(2)(B) must:

(A) Ensure the security, reliability, integrity, and maintenance of the system and published notices and records to verify compliance with public notice requirements;

(B) Specify clear, legally compliant timeframes that govern the posting, archiving, and retention of public notices and related records; and

(C) Standardize a legally compliant format and appearance for electronically published notices, including supplemental information that may be posted with such notices.

(5) Operators of third-party websites permitting local governments to post electronic notices on the third party's website may charge a reasonable fee for such service.

(6) A public notice that is specifically required by law to be published in a newspaper or periodical of general circulation must be published in compliance with such law.

SECTION 2. This act takes effect on July 1, 2026, the public welfare requiring it.